

Amendment No. 2 to SB0322

Massey
Signature of Sponsor

AMEND Senate Bill No. 322*

House Bill No. 915

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 8-50-813(a), is amended by deleting the subsection and substituting:

(a) In addition to leave granted under §§ 8-50-801, 8-50-802, and 8-50-806, an eligible employee must be granted absence from work with pay for a period of time equal to six (6) workweeks because of the birth of the employee's child or the placement of a child with the employee for adoption, or because the employee is caring for a family member with a serious health condition, and upon the employee giving thirty-days' notice to the appropriate appointing authority. If the eligible employee learns of the birth, adoption, or family member's serious health condition less than thirty (30) days in advance, then the employee shall give the notice as soon as reasonably possible. For the purpose of calculating service anniversary dates, this absence from work is considered full-time employment.

SECTION 2. Tennessee Code Annotated, Section 8-50-813(d), is amended by deleting the subsection and substituting:

(d) An eligible employee must not be granted more than six (6) workweeks of paid leave under subsection (a) during a twelve-month period, but the workweeks do not need to be taken consecutively. Leave granted under subsection (a) may be taken on a reduced schedule or intermittently as provided under 29 U.S.C. § 2612 of the federal Family and Medical Leave Act. An eligible employee may receive no more than six (6) workweeks of paid leave during a twelve-month period, even if there is more than one

(1) qualifying birth, adoption, or family member's serious health condition under subsection (a). Leave granted pursuant to this section for a qualifying birth or adoption must be used within twelve (12) months of the qualifying birth or adoption.

SECTION 3. Tennessee Code Annotated, Section 8-50-813(e), is amended by deleting the subsection and substituting:

(e)

(1) As used in this section:

(A) "Eligible employee" means:

(i) An employee who has been employed full-time with the state for at least twelve (12) consecutive months with an entity described in §§ 8-30-102(a), 8-30-102(b)(2), 8-30-102(b)(6)-(7), and 8-30-102(b)(10)-(13); or

(ii) An employee who has been employed full-time with the state for at least twelve (12) consecutive months with an entity described in § 8-30-102(b)(9), except for an employee of any administrative board or commission that is attached to an entity described in § 8-30-102(b)(1) or § 8-30-102(b)(3)-(5);

(B) "Family member" means an eligible employee's child, spouse, parent, or a grandchild if the grandparent has custody of the grandchild at the time leave is requested; and

(C) "Serious health condition" means an illness or condition that involves hospice care.

(2) The department of human resources may give guidance and further clarify the definitions of "serious health condition" and "family member" by policy.

SECTION 4. Tennessee Code Annotated, Section 8-50-813, is amended by adding the following as a new subsection:

(i) If an eligible employee is caring for a family member with a serious health condition under subsection (a) prior to January 1, 2026, and has not used all of the leave to which the employee is entitled under the federal Family and Medical Leave Act, if applicable, then the employee is entitled to leave under this section beginning on January 1, 2026, for the remainder of leave to which the employee is entitled under the federal Family and Medical Leave Act, if applicable, on or after January 1, 2026, as a result of the employee caring for a family member with a serious health condition. The duration of paid leave must not exceed the paid leave available under subsection (d).

SECTION 5. This act takes effect January 1, 2026, the public welfare requiring it.